

Preliminary Brief - Statement Made By Informant

Accused (FRASER) v Informant (KUJAN)

Accused

Name

Family Name

FRASER

Given Names

Kyle

Sex

M

Date of Birth

12/01/2000

Prior Convictions

Yes

Informant

Name

Family Name

KUJAN

Given Names

David

Rank

Detective Senior Constable

Reg. No.

11111

Work Location

Pahran Police Station

Telephone

50252201

Co-Accused

Name

Family Name

Given Names

Sex

Date of Birth

Orders / Applications

Forfeiture / Disposal

Forfeiture Order required and form attached

☐ Yes☐ No☒ N/A

Witness Costs / Restitution / Compensation

Witness costs, restitution or compensation sought and form attached

☐ Yes☐ No☒ N/A

Forensic Procedures (Crimes Act 1958)

Application for forensic sample and form attached - S.464ZFB or ZGF [Juvenile Only]

☐ Yes☐ No☒ N/A

Application for forensic sample and form attached - S.464ZF(2) or ZF(2AAA)

☐ Yes☐ No☒ N/A

Sex Offender Registration

Proposed action against the accused and form attached

☐ Mandatory☐ Discretionary☒ N/A

Contravention of Suspended Sentence

If found guilty accused contravenes a suspended sentence and charge attached

☐ Yes☐ No☒ N/A

Exclusion Order (Section 89DE Sentencing Act 1991)

Application for Alcohol Exclusion Order sought and form attached

☐ Yes☐ No☒ N/A

Exclusion Order (Part 8A LCRA 1998)

Application for an Exclusion Order sought and form attached

☐ Yes☐ No☒ N/A

Motor Vehicle Impound Orders (Road Safety Act 1986)

Forfeiture order for motor vehicle and form attached - S.84U(1)

☐ Yes☐ No☒ N/A

Impoundment / immobilisation order and form attached - S.84U(1)

☐ Yes☐ No☒ N/AForfeiture order for **substituted** motor vehicle and form attached - S.84V(1)☐ Yes☐ No☒ N/AImpoundment / immobilisation order for **substituted** motor vehicle - S.84U(1)☐ Yes☐ No☒ N/A

Immediate Permit / Licence Ban (Part 6B/6C Road Safety Act 1986)

Accused permit / licence suspended or disqualified and notice attached (brief copy)

☐ Yes☐ No☒ N/A

Date suspension / disqualification commenced

Does the victim want to provide a victim impact statement

☐ Yes☐ No☒ N/A

Victim impact statement attached

☐ Yes☐ No☒ N/A

Other (Specify)

Note: Actual applications / orders are only attached to prosecution copy of the brief

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Statement of alleged facts

Description of alleged offence(s) with reference to supporting evidence. Where relevant provide a description of the background and consequences of the alleged offence.

The victim and accused are not know to each other.

On 31/05/N-1 the victim attending Pepper nightclub in King Street Melbourne in company with 2 male friends.

At approximately 0030 hours the victim had an altercation on the dancefloor with the accused and 2 of his associates as they had bumped into each other. The victim complained to security about the behaviour of the accused and his 2 male friends and they were subsequently ejected from the venue.

A short time later at approx 0100 hrs, the 2 groups were near a kebab van parked on King Street. The accused and associates recognised the victim and his friends from the altercation on the dancefloor earlier in the evening. An argument ensued and quickly became physical. The 2 groups of men started pushing each other and then punches were thrown. People standing at the kebab van scattered into all directions. This was captured on the vans' CCTV. During the fight the accused punched the victim to the face causing the victim to fall to the ground and lose consciousness. The accused and associates are seen running from the scene.

Security personnel from the nightclub attended and rendered first aid to the victim. The victim was transported to the Royal Melbourne Hospital where he was diagnosed with concussion and a fractured left eye-socket.

The accused was identified by using the Scantek data which records an image of the accused and his drivers licence upon entry and comparing this to the CCTV footage from outside the venue.

The accused was arrested at his home address and transported to the Melbourne West Police Station for interview where he made a "No comment" interview.

As a result of his injuries the victim had to take 2 weeks off work periodically suffers from migraine headaches.

Statement made by accused

Relevant explanations provided by accused including statements of admission, mitigation or remorse (include direct quotes where practicable)

"No comment"

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Witness list

No.	Name	Evidence	Statement Obtained	Document Attached
1	Computer Programmer Eddy FINNERAN	Victim - Will give evidence of being assaulted outside Pepper nightclub.	Yes	Yes
2	Crowd Controller Max POWER	Witness - Will give evidence of observing groups fighting. Evidence of attending victim and providing first aid. Evidence of obtaining CCTV	No	No
3	IT worker Marty FIELDS	Witness - Present during the altercation between the victim and accused.	No	No
4	Systems analyst Vladimir KEFT	Witness - Present during the altercation between the victim and accused.	No	No
5	Detective Senior Constable Dave KUJAN	Informant - Will give evidence of investigation, evidence of executing search warrant, evidence of locating exhibits.	No	No

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Exhibit list

No.	Exhibit Description	Produced By	Exhibit Relevance	Police Possession
1	CCTV footage	Detective Senior Constable David KUJAN	Captures the interaction and fight between the groups	Yes
2	Scantek data	Detective Senior Constable David KUJAN	Depicts the accused and his drivers licence upon entry to Pepper nightclub.	Yes
3	Dr report from Dr BERTHIB	Detective Senior Constable David KUJAN	Details the injuries sustained by victim	Yes
4	DVD recoded interview	Detective Senior Constable David KUJAN	Recording of interview conducted	Yes

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Acknowledgment

I acknowledge that this statement is true and correct and I make it in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury.

Signature

Signature of person making acknowledgment

David KUJAN Detective Senior Constable 11111

Acknowledgment taken and signature witnessed by me at

Place

Date

Time

Before(1):

Name and address in legible writing, typing or stamp

(1) A person authorised under Section 38 of the Criminal Procedures Act 2009 to witness statements

Printer ID at which Identifiers Report will be printed		Total Number of Charges Submitted for this Accused	4	LEAP FAX SEQUENCING Page No./Total No. of pages	
--	--	--	---	---	--

CHARGE - SHEET

CDEB / Police Brief copy

FV/SA Code: Not Applicable

Magistrates' Court Criminal Procedure Rules 2019 Form 1 Rule 13(a)

TO THE ACCUSED		Unsuitable Dates: Nil Unsuitable Dates							
Kyle FRASER 101 Holloway , Elsternwick VIC Mobile Phone No.: 04123678 Email Address: made.up@gmail.com		Preferred Dates: Nil Preferred Dates							
		<table border="1" style="width: 100%;"> <tr> <td style="text-align: center;">M</td> <td style="text-align: center;">F</td> <td style="text-align: center;">Co</td> <td style="text-align: center;">Date of Birth</td> </tr> <tr> <td style="text-align: center;">☒</td> <td style="text-align: center;">☐</td> <td style="text-align: center;">☐</td> <td style="text-align: center;">12/01/2000</td> </tr> </table>		M	F	Co	Date of Birth	☒	☐
M	F	Co	Date of Birth						
☒	☐	☐	12/01/2000						
You have been charged with an offence against the law. Read these pages to see what you must do		Registration No.							
MNI / JAID: 313131313		Licence No.							
		<table border="1" style="width: 100%;"> <tr> <td>State</td> <td>VIC</td> </tr> <tr> <td>State</td> <td>VIC</td> </tr> </table>		State	VIC	State	VIC		
State	VIC								
State	VIC								

Details of the charge against you	
What is the charge?	1 The accused at Melbourne on 31/05/N-1 did commit an affray by using unlawful violence. [2] Sub-Incident Number: _____ Offence Code: 599KA Offence Literal: Affray (Crimes Act)

Under what law?	☒ State ☒ Act ☐ Other - Specify ☐ C'Vealth ☐ Reg	Act or Regulation No. Crimes Act 6231/1958	Section/Clause (Full Ref.) 195H(1)
Type of Offence	☐ Summary Offence (You should go to Court) ☒ Indictable Offence (You must go to Court)		
Request for Committal Proceeding	☒ No ☐ Yes		
Is this an infringement offence?	☒ No ☐ Yes - see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances ☐ Infringements Act 2006 s.40 ☐ Other:	If enforcement review, date of service by the Director, Fines Victoria:	
Are there more charges?	☐ No ☒ Yes - see "Continuation of Charges" attached		
Informant	Detective Senior Constable David KUJAN 11111		Phone No: 50252201
Agency and Address	Prahran Police Station CIU 396 Malvern Rd, Prahran VIC. 3181		
Email	made.up@police.vic.gov.au		Fax: 50252076
Informant Signature			Date
Charge Filed at	Melbourne		Date

CONTINUATION OF CHARGES

CDEB / Police Brief copy

Magistrates' Court Criminal Procedure Rules 2019 Form 2 Rule 13(b)

Person Charged Kyle FRASER		Page No 1	
2 The accused at Melbourne on 31/05/N-1 did without lawful excuse intentionally cause injury to Eddy FINNERAN.			
[2] Sub-Incident Number:		Offence Code: 122D	
Offence Literal: Intentionally Cause Injury			
☒ State	☒ Act	☐ Other - Specify	Act or Regulation No. Crimes Act No.6231/1958
☐ C'Vealth	☐ Reg		Section/Clause (Full Ref.) 18
☐ Summary Offence (You should go to Court but you must go if you are on bail)		☒ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☒ No ☐ Yes		
Is this an infringement offence?	☒ No ☐ Yes - see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
3 The accused at Melbourne on 31/05/N-1 did without lawful excuse recklessly cause injury to Eddy FINNERAN.			
[2] Sub-Incident Number:		Offence Code: 122E	
Offence Literal: Recklessly Cause Injury			
☒ State	☒ Act	☐ Other - Specify	Act or Regulation No. Crimes Act No.6231/1958
☐ C'Vealth	☐ Reg		Section/Clause (Full Ref.) 18
☐ Summary Offence (You should go to Court but you must go if you are on bail)		☒ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☐ No ☐ Yes		
Is this an infringement offence?	☐ No ☐ Yes -see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
Are there more charges?	☐ No ☒ Yes - see Page No. 2		
Informant	Detective Senior Constable David KUJAN 11111		
Agency and Address	Pahran Police Station CIU 396 Malvern Rd, Prahran VIC. 3181		Phone 50252201
Informant Signature		Registrar Signature	
Charge filed at			Date
Follow the instructions as listed for VP Form 401 or 402, depending on the circumstances of use of this continuation of charges. 'Informant Signature' MUST appear on the 'To be filled at Court after service' copy of this form.			
If these Continuation of Charges are laid at a time subsequent to the submission of the original charges, then the following data fields MUST be completed:		MNI / JAID	
		Offender ID	
		Printer ID R	

CONTINUATION OF CHARGES

CDEB / Police Brief copy

Magistrates' Court Criminal Procedure Rules 2019 Form 2 Rule 13(b)

Person Charged Kyle FRASER Page No 2

4 The accused at Melbourne on 31/05/N-1 did unlawfully assault Eddy FINNERAN.

[2] Sub-Incident Number: Offence Code: 129C

Offence Literal: Unlawful Assault

☒ State ☒ Act ☐ Other - Specify☐ C'Vealth ☐ RegAct or Regulation No.
Summary Offences Act
No.7405/1966Section/Clause (Full Ref.)
23☒ **Summary Offence** (You **should** go to Court but you **must** go if you are on bail) ☐ **Indictable Offence** (You **must** go to Court)Request for Committal
Proceeding☐ No ☐ YesIs this an infringement
offence?☐ No ☐ Yes - see below☐ Enforcement Review☐ Enforcement Review -special circumstances☐ Infringements Act 2006 s.40 ☐ Other:

[2] Sub-Incident Number: Offence Code:

Offence Literal:

☐ State ☐ Act ☐ Other - Specify☐ C'Vealth ☐ Reg

Act or Regulation No.

Section/Clause (Full Ref.)

☐ **Summary Offence** (You **should** go to Court but you **must** go if you are on bail) ☐ **Indictable Offence** (You **must** go to Court)Request for Committal
Proceeding☐ No ☐ YesIs this an infringement
offence?☐ No ☐ Yes -see below☐ Enforcement Review☐ Enforcement Review -special circumstances☐ Infringements Act 2006 s.40 ☐ Other:Are there more
charges?☒ No ☐ Yes

Informant Detective Senior Constable David KUJAN 11111

Agency and
Address Prahran Police Station CIU 396 Malvern Rd, Prahran VIC. 3181

Phone 50252201

Informant
SignatureRegistrar
Signature

Charge filed at

Date

Follow the instructions as listed for VP Form 401 or 402, depending on the circumstances of use of this continuation of charges.
'Informant Signature' MUST appear on the 'To be filled at Court after service' copy of this form.**If these Continuation of Charges are laid at a time subsequent to the submission of the original charges, then the following data fields MUST be completed:**

MNI / JAID

Offender ID

Printer ID

R

STATEMENT

Name: Eddy FINNERAN

STATES:

My name is Eddy FINNERAN and my details are known to police.

On 31/05/N-1 I was out with drinking with 2 of my friends, Marty FIELDS and Vladimir KEFT. We went to Pepper nightclub in the city to celebrate Vlad's birthday. We arrived at about 10pm and things were going well.

I had about 8 drinks when at about 12:30am we were on the dancefloor dancing. I was dancing near a girl who I didn't know. The dancefloor was pretty packed. Everyone was having a good time and dancing around. Vlad and Marty had quite a bit to drink and I would say they were drunk but happy.

After a while this tall guy in a hoodie was dancing near us and he kept bumping into me. I would describe him about 25 years old, Caucasian, wearing blue jeans, a white t-shirt and a dark hoodie. I think he was about 6'2" tall. He was much bigger than me. I'm 5'6" and he towered over me. I thought he was just a bit drunk and I tried to move away. He kept dancing near us though and it seemed like he was with a couple of other people that were really just sort of jumping around and being idiots.

After a few minutes I told him to move somewhere else as I was getting annoyed with him dancing near me and bumping into me.

He just sort of looked at me and told me to "Fuck off!"

I then went over to security and told them about the aggressive behaviour by that group.

A few moments later security went over to the group and I saw them look over towards me and point. The rowdy group of 3 guys then got escorted out of the club. As they were leaving the tall guy in the hoodie kept staring at me and that made me nervous.

That whole interaction kind of killed the vibe for me so after about another 20 minutes I decided I wanted to leave.

It was about 1am when Vlad, Marty and I left Pepper nightclub. I was a bit tipsy but not really that drunk.

We went to the kebab van next door and that's when that group of guys were there as well. The hoodie guy spotted me and the whole group came running over. The hoodie guy was super aggressive towards me and making fun of me because I'm much smaller than him. He kept calling me shrimp-boy and Mr Puniverse and things like that. I tried to diffuse the situation and Vlad offered to buy them all a kebab but before I knew it they started pushing us. Marty pushed one of the other guys back and then one in their group yelled "It's on like Donkey Kong!" and they started punching into us. I tried to just sort of push back on them to get them away from us. Marty ran off I think but I can't be sure.

I then remember the hoodie guy punching me to the face. It was kind of like an all in brawl and punches were flying everywhere but given it was now 2 of us against 3 of them we were getting pummelled pretty hard.

I remember getting punched one more time by the hoodie guy and everything went dark. The next thing I remember there was security from Pepper near me and I had blood from my nose. Everything was a bit hazy and then a short time later police and ambulance arrived. The ambulance took me to hospital where I was told I had a fractured eye socket and concussion.

I stayed in hospital for 2 days for observations and was then released.

I did not give anyone permission to assault me.

.....
(Eddy FINNERAN)

Statement taken and signature witnessed by me

at on 03/06/N-1 at Prahran

I hereby acknowledge that this statement is true and correct and I make it in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury.

.....
(Eddy FINNERAN)

Acknowledgment made and signature witnessed by me

at on at



VICTORIA POLICE

SURVEILLANCE AIDE

Pepper Nightclub

Front entry CCTV



1. Accused entering Pepper nightclub verifying his identity.



2. Accused entering Pepper nightclub.



V I C T O R I A P O L I C E

NIL PRIORS
RECORDED IN
VICTORIA